

The National Investigation Agency (Manner Of Constitution Rules, 2008

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Union of India - Act

The National Investigation Agency (Manner Of Constitution Rules, 2008

UNION OF INDIA

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The National Investigation Agency (Manner Of Constitution Rules, 2008

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The National Investigation Agency (Manner Of Constitution Rules, 2008

Published vide Notification G.S.R. 3015(E), dated 31.12.2008 and published in the Gazette of India, Extraordinary, Part 2, Section 3(ii), dated 31.12.2008.

18.

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In exercise of the powers conferred by sub-section (1) of section 3, read with clause (a) of sub-section (2) of section 25 of the National Investigation Agency Act, 2008 (

34 of 2008

), the Central Government hereby constitutes an Agency to be called the National Investigation Agency and Marks the Following rules, namely:-

1.

Short title and commencement

-(1) These rules may be called the National Investigation Agency (Manner of Constitution) Rules, 2008.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition

-(1) In these rules, unless the context otherwise requires,-

(a)

"Act" means the National Investigation Agency Act, 2008 (34 of 2008

);

(b)

"Agency" means the National Investigation Agency constituted under section 3 of the National Investigation Agency Act, 2008 (34 of 2008

);

(c)

"Code" means the Code of Criminal Procedure, 1973 (2 of 1974);

(d)

"Director-General" means the Director-General appointed by the Central Government;

(e)

"Schedule" means the Schedule to the National Investigation Agency Act, 2008.

(2)

Words and expressions used herein and not defined in these rules, but defined in the Act, shall have the meanings respectively assigned to them in the Act, or in the Police Act, or in the Code, as the case may be.

3.

Constitution of the National Investigation Agency

.-The National Investigation Agency shall consist of the following, namely:-

(a)

a Director-General, not below the rank of Additional Director-General of Police, to be appointed by the Central Government on the same terms and conditions as are applicable to officers of the corresponding rank in the Central Government; and

(b)

such number of officers and employees as may be specified by the Central Government from time to time.

4.

Head Quarter

.-The headquarters of the Agency shall be at Delhi.

5.

Administration of the Agency

.-The Administration of the Agency shall vest in the Director-General.

6.

Powers and functions of the Director-General

.-The Director-General shall exercise in respect of the Agency such powers exercisable by a Director-General of Police in respect of the Police force in a State, as may be specified by the Central Government from time to time.

7.

Powers and functions of the Agency

.-The Agency shall have the following powers and functions, namely:-

(a)

to investigate and prosecute offences in respect of the Acts specified in the Schedule;

(b)

to provide assistance to, and seek assistance from, other intelligence and investigation agencies of the Central Government and State Governments; and

(c)

to take such other measures which may be necessary for speedy and effective implementation of the provisions of the Act.

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